

The Central Apprenticeship Council Rules, 1962

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The Central Apprenticeship Council Rules, 1962

Rule THE-CENTRAL-APPRENTICESHIP-COUNCIL-RULES-1962 of 1962

Published on 19 April 1962

Commenced on 19 April 1962

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The Central Apprenticeship Council Rules, 1962

Published vide G.S.R. 608, dated 19.4.1962.

269.

In exercise of the powers conferred by sub-section (1) of section 37 of the Apprentices Act, 1961 (52 of 1961

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The Central Apprenticeship Council Rules, 1962.

(2)

They shall come into force at once.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Apprentices Act, 1961 (52 of 1961

);

(b)

"Chairman" means the Chairman of the Central Apprenticeship Council;

(c)

"Council" means the Central Apprenticeship Council established under sub-section (1) of section 24 of the Act;

(d)

"Member" means a member of the Council;

(e)

"Secretary" means Secretary to the Council.

3.

Constitution of Council .-The Council shall consist of a Chairman [and a Vice-Chairman] who shall be appointed by the Central Government and the following other members who shall also be appointed by the Central Government, namely:-

(a)

not more than 9 representatives of employers in establishments in the public sector,

(b)

not more than 9 representatives of employers in establishments in the private sector,

(c)

[not more than 18 representatives of the Central Government,]

[Substituted by G.S.R. 895(E), dated 29.12.2008 (w.e.f. 30.12.2008).]

(d)

[not more than [22]

[Substituted by G.S.R. 1250, dated 25.6.1968.]

representatives of the State Governments,]

(e)

[not more than 4 persons having special knowledge and experience on matters relating to industry and technical education,

[Substituted by G.S.R. 216, dated 5.5.2003 (w.e.f. 24.5.2003).]

(f)

not more than 5 persons having special knowledge and experience on matters relating to labour,

(g)

two representatives of the All India Council and one representative each of the Regional Boards.]

4.

Term of office .-(1) The Council shall be constituted for a period of three years and thereafter it shall be reconstituted at the end of every three years. All the members appointed to it shall accordingly hold office for a period of three years: Provided that a member of the Council shall, notwithstanding the expiry of the said period of three years, continue to hold office until his successor is appointed.

(2)

Where a person is chosen as a member of the Council by virtue of the office or appointment he holds, he shall cease to be a member if he ceases to hold that office or appointment.

5.

Cessation of membership .-(1) A member of the Council shall cease to be a member if he dies, resigns, becomes of unsound mind, is declared insolvent or is convicted of a criminal offence involving moral turpitude.

(2)

[The office of a member of the Council shall fall vacant from the date on which his resignation is accepted or on the expiry of 30 days from the date of receipt of letter of resignation, whichever is earlier.]

6.

Filling of vacancies .-(1) Any vacancy in the membership of the Council caused by reasons mentioned in sub-rule (1) of

rule 5, shall be filled by the Central Government.

(2)

A member appointed to fill a casual vacancy shall hold office for so long as the member whose place he fills would have been entitled to hold office if the vacancy had not occurred.

7.

Time and place of meeting .-The Council shall meet as often as may be necessary and at least once a year on such date, time and place as may be determined by the Chairman.

8.

Notice of meeting .-The Secretary shall give a notice of not less than fifteen days for a meeting of the Council to each member but a shorter notice may be given for holding an emergency meeting.

9.

Quorum for the Council .-One-third of the number of members of the Council shall constitute the quorum for any meeting of the Council.

10.

Decision by majority .-(1) All questions to be decided by the Council shall be in accordance with the opinion of the majority of the members present and voting.

(2)

Each member shall have one vote. If there is equality of votes, the Chairman shall have and exercise the casting vote.

11.

Business by circulation .-(1) The Chairman may, in special circumstances, instead of convening a meeting of the Council, obtain the opinion of the members on any item of business individually by circulation of papers and such item shall be decided in accordance with the opinion of the majority.

12.

Proceedings of the Council .-(1) Copies of all proceedings of the Council shall be furnished to the Secretary of the National Council for Training in Vocational Trades. Any views expressed or suggestions made thereon by the said National Council shall be duly considered by the Council.

(2)

In all other matters, the Council shall follow such procedure as it may determine.

13.

Power to co-opt members .-The Council may, at any time, invite any person to attend its meetings to give advice or assist in any matter. The person to be invited shall, however, not be entitled to vote on any question coming before the Council.

14.

Committees of Council .-(1) The Council shall have the power to appoint such Standing or Special Committees for assisting it in the discharge of its functions as may be considered expedient by it.

(2)

[The functions of the Standing or Special Committees shall be determined by the [Central Government].

(3)

The composition of the Standing or Special Committees shall be determined by the [Central Government]

[Substituted by G.S.R. 216, dated 5.5.2003 (w.e.f. 24.5.2003).]

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15.

Fees and allowances to members .-The Chairman and the representatives of the Central and the State Governments will draw travelling and daily allowances for attending the meetings of the Council or of its Committees from the respective Governments in accordance with the rules of those Governments. All other members of the Council will be paid travelling and daily allowances by the Central Government for attending the meetings of the Council or of its Committees at the rates admissible to a Government Officer of the first grade in accordance with the relevant rules.

16.

Authentication of acts and proceedings .-(1) All acts and proceedings of the Council shall be authenticated by the Chairman, or with the approval of the Chairman, by the Secretary.

(2)

The Secretary shall carry out the decision of the Council.

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